

AGREEMENT FOR THE PURCHASE, SALE AND EXCHANGE OF LANDS

This Agreement for the Purchase, Sale and Exchange of Lands (“Agreement”) is made and effective as of the date of execution (“Effective Date”) of the last signing party below, by and between Mariah, LLC, a Wyoming limited liability company, having its principal offices at 1813 Pacific Avenue, Cheyenne, Wyoming 82007 (“Mariah”); Dyno Nobel Inc., a Delaware corporation, having its principal offices at 2795 East Cottonwood Parkway, Suite 500, Salt Lake City, Utah 84121 (“Dyno Nobel”); and the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, having its principal offices at 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (“the City”).

WHEREAS, Mariah owns the surface and subsurface estate to lands situated in Cheyenne, Laramie County, Wyoming (“Parcel A”), containing 543.76 acres, having an appraised value of \$1,060,000.00, which parcel is particularly described in “Exhibit A – Legal Description and Map of Parcel A,” attached to this Agreement and incorporated herein by this reference.

WHEREAS, the City owns the surface and subsurface estate to lands situated in Cheyenne, Laramie County, Wyoming (“Parcel B”), containing 419.37 acres, having an appraised value of \$1,004,000.00, which parcel is particularly described in “Exhibit B – Legal Description and Map of Parcel B,” attached to this Agreement and incorporated herein by this reference.

WHEREAS, Dyno Nobel desires to acquire Parcel B.

WHEREAS, Mariah desires to sell Parcel A.

WHEREAS, the City desires to trade Parcel B for Parcel A.

NOW THEREFORE, in consideration of the mutual benefits and obligations set forth in this Agreement:

1. Subject to the terms and conditions set forth in Paragraphs 3-17.
 - a. Mariah agrees to sell to Dyno Nobel, and Dyno Nobel agrees to purchase from Mariah, Parcel A; and
 - b. At the closing, Mariah shall convey Parcel A to the City pursuant to Wyo. Stat. Ann. § 15-1-112(b)(ii) (Lexis 2017); and
 - c. In consideration of the purchase of Parcel A by Dyno Nobel and the conveyance by Mariah of Parcel A to the City, the City agrees to pay Dyno Nobel \$117,500.00 and convey Parcel B to Dyno Nobel pursuant to Wyo. Stat. § 15-1-112(b)(ii).
 - d. It is understood by the City that Dyno Nobel is only agreeing to purchase Parcel A with the promise by the City that it will pay Dyno Nobel \$117,500.00 and convey Parcel B to

Dyno Nobel and Dyno Nobel would not purchase Parcel A if not for that promise. Therefore, if Dyno Nobel purchases Parcel A in accordance with this Agreement, the City will be obligated to pay Dyno Nobel \$117,500.00 and convey Parcel B to Dyno Nobel in accordance with this Agreement.

2. At closing, and subject to the terms and conditions set forth in Paragraphs 3-17:
 - a. Dyno Nobel shall issue certified funds payable to Mariah in the amount of \$1,295,000.00 for Parcel A, which certified funds shall be accepted by Mariah as full and final payment of consideration for the purchase of Parcel A; and
 - b. Mariah shall execute and deliver to the City a general warranty deed conveying to the City all of Mariah's right, title and interest in Parcel A and showing no additional exceptions to those permitted in Paragraphs 3 and 4, and furnish tax statements or certificates to Dyno Nobel and the City showing no delinquent taxes on Parcel A; and
 - c. Simultaneously with the conveyance of title by Mariah of Parcel A to the City, the City shall issue certified funds payable to Dyno Nobel in the amount of \$117,500.00 and shall execute and deliver a special warranty deed conveying to Dyno Nobel all of the City's right, title and interest in Parcel B, and showing no additional exceptions to those permitted in Section 4, and furnish tax statements or certificates to Dyno Nobel showing no delinquent taxes on Parcel B.
3. Mariah reserves an undivided Forty-Nine Percent (49%) interest in the Mineral Estate. Dyno Nobel does not reserve and retain any of the Mineral Estate, and Parcel A shall be conveyed by Mariah to the City subject to Mariah's reserved Forty-Nine Percent (49%) interest of the Mineral Estate. "Mineral Estate" means all oil, gas, and other minerals in and under and that may be produced from Parcel A, any royalty under any existing or future mineral lease covering any part of Parcel A, executive rights (including the right to sign a mineral lease covering any part of Parcel A), implied rights of ingress and egress, exploration and development rights, production and drilling rights, mineral lease payments, and all related rights and benefits. The Mineral Estate does NOT include water, sand, gravel, limestone, building stone, caliche, surface shale, near-surface lignite, and iron, but DOES include the reasonable use of these surface materials for mining, drilling, exploring, operating, developing, or removing the oil, gas, and other minerals from Parcel A.
4. Mariah certifies it has provided to the City and Dyno Nobel all surveys or plats of or which include Parcel A, all documents in its possession or control relating to environmental matters, including but not limited to a Phase 1 Environmental Assessment, any geotechnical surveys or reports, water rights, and minerals. The City certifies it has provided to Dyno Nobel any surveys or plats of or which include Parcel B, all documents in its possession or control relating to environmental matters, including but not limited to a Phase 1 Environmental Assessment, any geotechnical surveys or reports, water rights, and minerals. Before closing, the City and

Dyno Nobel, may terminate this Agreement for any reason or no reason. Before closing, the City and Dyno Nobel may conduct inspections, surveys and studies of the Parcels as each deems necessary or appropriate to inspect or evaluate the Parcel that it will be receiving at closing. The City's and Dyno Nobel's physical inspection of Parcel A and Parcel B, as appropriate, may include soils and geotechnical assessments and an ASTM Phase 1, or equivalent environmental due diligence investigation, to determine or confirm the condition of the respective Parcel. The parties will reasonably agree to extend the closing period if additional time is needed to complete a Phase 1 or other environmental assessments.

5. The City shall pay the premium for a standard form minimum value title insurance policy issued by Town Square Title of Wyoming, LLC, Cheyenne, Wyoming, ("Title Company") to insure the City's title to Parcel A. Dyno Nobel will pay the premium for a standard form title insurance policy (or extended coverage and any endorsements, as required by Dyno Nobel) issued by Title Company to insure Dyno Nobel's title to Parcel B. Title to be conveyed, in each instance, shall be good and marketable, subject only to liens, encumbrances, restrictions, easements and other burdens which are not objected to in writing within 15 days after the City's receipt of a commitment for the issuance of a title insurance policy for Parcel A or within 15 days after Dyno Nobel's receipt of a commitment for the issuance of a title insurance policy for Parcel B. In the event any exception shown on the title commitment for Parcel A and objected to by the City is not cured by Mariah before closing, the City and/or Dyno Nobel shall each have the right, in either's sole discretion, to cancel this Agreement. In the event any exception shown on the title commitment for Parcel B and objected to by Dyno Nobel is not cured by the City before closing, Dyno Nobel shall have the right, in its sole discretion, to cancel this Agreement. Closing shall occur when Title Company, is in a position to record all documents required under this Agreement, to make all disbursements, and to issue the title insurance policies provided for herein, but in no event later than 20 days after the Effective Date of this Agreement, unless extended in writing by mutual agreement of the parties.
6. If, at the time of transfer of title, either Parcel A or Parcel B, or any part of either parcel, is subject to an assessment or assessments payable in installments, all such installments not due or delinquent at the time of transfer shall nevertheless be deemed to be due and payable at such time, and all such assessments shall be paid and discharged by Mariah with respect to Parcel A and by the City with respect to Parcel B prior to closing.
7. Each party will be responsible for its attorneys' fees, costs, and expenses associated with this Agreement. The escrow agent's escrow fees shall be divided between Mariah and Dyno Nobel. The City shall pay any and all fees associated with recording fees necessary to record instruments received by the City at closing and Dyno Nobel shall be responsible for any and all fees associated with recording the special warranty deed to be delivered by the City at closing with respect to Parcel B. Any other closing costs will be divided amongst the parties as customarily done in Cheyenne, Wyoming.
8. Risk of loss or damage by fire or other casualty to either Parcel A or Parcel B, or any part of either parcel, prior to closing shall be the risk of the current owner thereof. In the event of

such loss or damage to Parcel A prior to closing, the City and/or Dyno Nobel each may, in either's sole discretion, cancel this Agreement. In the event of such loss or damage to Parcel B prior to closing, Dyno Nobel may, in its sole discretion, cancel this Agreement. Possession of each Parcel subject to this Agreement shall be transferred at closing.

9. To Mariah's knowledge, all existing uses of Parcel A are lawful and in compliance with all federal, state, and municipal laws and ordinances, including ordinances relating to environmental protection and zoning. It is mutually understood and agreed that Mariah has been making use of Parcel A. For this reason, Dyno Nobel and the City each expressly disclaim any warranties that all existing uses of Parcel A are lawful or in compliance with all federal, state, and municipal laws and ordinances, including ordinances related to environmental protection and zoning. Mariah warrants and represents that it has no knowledge of any fact or circumstance that would preclude the use of Parcel A for the purposes of outdoor recreation, wind energy development or other municipal purposes. To the City's knowledge all existing uses of Parcel B are lawful and in compliance with all federal, state, and municipal laws and ordinances, including ordinances relating to environmental protection and zoning. Dyno Nobel expressly disclaims any warranties that all existing uses of Parcel B are lawful or in compliance with all federal, state, and municipal laws and ordinances, including ordinances related to environmental protection and zoning. The City and Dyno Nobel have received copies of the appraisal report for Parcels A and B prepared by Accuvalue, LLC and have knowledge of the contents thereof.
10. The parties mutually warrant and represent that no brokers or agents other than Hayden Outdoors, L.L.C., 501 Main St., Windsor, CO 80550, ("Seller's Agent") have been employed or retained by any party in connection with the negotiation or consummation of the purchase and land exchange contemplated by this Agreement and that Mariah shall pay all Seller's Agent's fees, commission or other compensation or reimbursement for expenses made by Seller's Agent in connection with this Agreement or the transactions it contemplates. Neither the City nor Dyno Nobel shall become obligated to pay any commission of any kind or nature to any broker or agent upon the closing of this purchase.
11. All notices required by this Agreement shall be in writing and shall be served on the parties at their addresses, as indicated above, or on their attorneys at their business addresses. The mailing of a notice by registered or certified mail, return receipt requested, shall serve as sufficient notice. Notices may also be served by personal delivery. Notices may also be served by e-mail, or by the use of a facsimile machine, so long as a copy of the notice sent by e-mail or a copy of the notice sent by facsimile, with proof of e-mail or facsimile transmission, is also sent by regular mail on the date of transmission.
12. This Agreement shall not be binding upon the City until such time as this Agreement has been approved by the Governing Body of the City of Cheyenne. Except as provided herein, this Agreement, and the covenants and conditions herein, shall bind and inure to the benefit of the parties, and their respective heirs, personal representatives, successors and assigns. Unless this Agreement otherwise requires, the covenants of this Agreement shall survive the transfer

of title.

13. Except for performance of the obligations under and enforcement of the terms and conditions of this Agreement, the City of Cheyenne reserves all immunities and defenses provided for in the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 *et seq.* This Agreement shall be governed by the laws of the State of Wyoming, and any actions relating to or arising out of this Agreement shall be brought in the District Court of the State of Wyoming, First Judicial District, Laramie County, sitting at Cheyenne, Wyoming.
14. It is mutually understood and agreed that Parcel A and Parcel B may be subject to easements for public water and sewer utilities, gas and electric utilities, telecommunications utilities, and other installations and fixtures. The obligations of the parties with respect to easements shall be governed by the provisions of Paragraph 4 of this Agreement relating to title and title insurance.
15. The parties acknowledge that they and their counsel have reviewed and revised this Agreement and that the normal rule of construction to the effect that any ambiguities are to be resolved against the drafting party will not be employed in the interpretation of this Agreement or any exhibits or amendments hereto.
16. Failure of any party to exercise any right given hereunder or to insist upon strict compliance with regard to any term, condition or covenant specified herein, will not constitute a waiver of that party's right to exercise such right or to demand strict compliance with any term, condition or covenant under this Agreement. This Agreement is not intended to create and does not create a joint venture or partnership between any of the parties.
17. This Agreement constitutes the sole and entire agreement of the parties and is binding upon the parties, their successors, legal representatives and assigns. The recitals to this Agreement are by this reference incorporated herein. This Agreement may be executed in counterparts, each of which may be deemed and original, and all of which will constitute one and the same agreement.

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK –
SIGNATURE PAGE FOLLOWS]

In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions hereof. Three (3) triplicate originals of this Agreement have been signed.

Mariah

Date

By:
Title:

Dyno Nobel

Date

By:
Title:

City of Cheyenne

Date

Marian J. Orr
Mayor

(SEAL)
Attest:

Kristina F. Jones, City Clerk